

(2/6/2026 Order.) The action remains pending.

As to the specific motion before the Court, the motion consists of a single page of substantive allegations and argument, unsupported by any legal authority or evidence, pursuant to which Plaintiff asks the Court to order defendant Garcia to provide him a rental vehicle until his car is repaired. A motion is required to be supported, at a minimum, by a memorandum of points and authorities providing the Court with the legal authority on which it is brought and the legal basis on which the relief sought can be granted. (Cal. R. Ct., Rule 3.1112(a) and (b), and Rule 3.1113(a) ["A party filing a motion . . . must serve and file a supporting memorandum."] and (b) ["The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced."].)

The motion is not supported by a Rule-compliant memorandum, legal authority or evidence. Plaintiff is not excused from compliance with applicable law, procedures, and rules merely because he is a self-represented litigant. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284-1285.) Plaintiff has presented no legal or factual basis for the Court to grant the substantive relief requested by showing that either defendant is legally obligated to provide Plaintiff a rental vehicle. For all these reasons, the motion is **denied**.

5. 9:00 AM CASE NUMBER: C24-01630

CASE NAME: ROBERT MILLER VS. SOPHIE HAN

HEARING ON SUMMARY MOTION JUDGMENT

FILED BY: MILLER, ROBERT A.

TENTATIVE RULING:

Before the Court is a motion for summary judgment, or in the alternative, summary adjudication, filed by plaintiff Richard Miller. For the reasons set forth, the Court rules as follows: (a) motion for summary judgment - **denied**; (b) motion for summary adjudication as to the First Cause of Action for Breach of Contract is – **granted**, and Plaintiff shall be granted judgment in the amount of \$132,282.32 plus attorney's fees and pre-judgment interest thereon at the rate of 10% per annum from April 18, 2022 until the date of entry of judgment; and (c) motion for summary adjudication as to the Second Cause of Action for Common Count: Account Stated - **denied**.

Background

Plaintiff Richard Miller alleges he is an attorney who represented defendant Sophie Han pursuant to a written Agreement for Legal Services ("Agreement"). (Compl. 1st C/A ¶¶ BC-1 and BC-2 and Exh. A.) The Agreement provides for Miller to represent Han and SS Dreambuilders, LLC in two civil actions identified in the Agreement. (Compl. Exh. A.) He alleges that on or about April 18, 2022, Han breached her agreement with Miller by failing to pay \$132,282.32 owed for his legal services. (Compl. ¶¶ 9, 10 and 1st C/A BC-4.) Miller alleges pre-litigation he served Han with a Notice of Client's Right to Fee Arbitration, a copy of which is also attached to the Complaint. (Compl. ¶ 9.) The Complaint alleges a cause of action for breach of contract (1st C/A) and a common count for account stated (2nd C/A). Miller seeks damages in the amount of \$132,282.32, plus pre-judgment interest at the rate of 10% and attorneys' fees and costs incurred in this action.

Han filed an answer to the Complaint. Miller has moved for summary judgment, or in the alternative, summary adjudication. Han has not responded to or opposed the motion. On February 5, 2026, Plaintiff filed and served a notice of non-opposition to the motion.

Legal Standards for Ruling on Plaintiff's Motion for Summary Judgment

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) The issues to be considered on a motion for summary judgment are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161.)

A plaintiff as the moving party does not need to disprove the defendant's defenses and meets its burden of showing there is no defense to the claim if it proves each element of the cause of action that would entitle plaintiff to judgment on that cause of action in its favor. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849, 853; *Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241; Code Civ. Proc. § 437c(p)(1).) "A plaintiff or cross-complainant has met that party's burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. (Code Civ. Proc. § 437c(p)(1) [emphasis added].)

Motions for summary adjudication under Code of Civil Procedure section 437c(f)(1) "are 'procedurally identical' to summary judgment motions." [Citation.] (*Duffey v. Tender Heart Home Care Agency, LLC* (2019) 31 Cal.App.5th 232, 240-241.) A motion for summary adjudication under Code of Civil Procedure section 437c(f)(1) can only be granted "if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc. § 437c(f)(1).) (*See also Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 251.)

Even though unopposed, the Court independently reviews a motion for summary judgment to determine whether the motion demonstrates by admissible evidence that there is no triable issue of material fact, and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c(c); *Duffey, supra*, 31 Cal.App.5th at 241.)

Summary of the Motion and Supporting Evidence

Plaintiff filed a Separate Statement ("SS") of Undisputed Material Facts ("UMFs") which lists four issues, including UMFs in support of Plaintiff's right to summary adjudication of the first cause of action (Issue 1, UMF Nos. 1-14), the second cause of action (Issue 2, UMF Nos. 15-18), the insufficiency of Han's answer and affirmative defenses (Issue 3, UMF No. 19), and Plaintiff's right to interest on the outstanding balance due under the Agreement from April 18, 2022 at 10% per annum (Issue 4, UMF No. 20).

The motion is supported by the declarations of Miller and his counsel Bryan, who attests to her

calculation of the interest on the unpaid balance under the Agreement at the 10% interest rate provided in the Agreement. (Bryan Decl. ¶ 3; Miller Decl. ¶ 3 and Exh. 1 [Agreement ¶ 8].) The motion is also supported by Plaintiff's request for judicial notice, pursuant to which Plaintiff requests the Court take judicial notice of the Court's August 15, 2025 Minute Order deeming admitted the requests for admissions subject to Plaintiff's motion to compel discovery responses, a notice of entry of the August 15, 2025 Minute Order showing service on Han, and the Complaint and Han's answer. (Pl. RJN Exhs. 1-4.) The Court **grants** the request for judicial notice, subject to the limitations on the scope of judicial notice under the case law. (Evid. Code § 452(d); *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice does not extend to the truth or interpretation of pleadings to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same]; *Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1569 [judicial notice of prior order or judgment].)

Miller's SS and supporting evidence shows that he entered into the Agreement with Han for legal services, that he performed legal services for her, that Miller sent monthly statements to Han during the course of his representation, that she breached the Agreement on or about April 18, 2022 by failing to pay the fees agreed to, that Miller provided a Notice of Client's Right to Arbitrate with a copy of the fee statement showing the amount owed of \$132,282.32, and that she has failed to pay the amount due despite demand. (Miller Decl. ¶¶ 3-9 and Exhs. 1 and 2.) The supporting evidence also includes a copy of the requests for admissions to which Han failed to respond and as to which the Court, on Plaintiff's motion, issued an order deeming the requests admitted. (UMF Nos. 10, 12-14 and supporting evidence.) Han is deemed to have admitted the genuineness of the copy of the Agreement governing Miller's legal services rendered to her, the fact that Han owes Miller \$132,282.32 in attorneys' fees and costs, and that she owes interest on that amount at the rate of 10% per year from April 18, 2022. (Miller Decl. ¶¶ 10-14 and Exhs. 3-5; RJN Exhs. 1 and 2.)

Analysis

A. Issue 1: First Cause of Action for Breach of Contract

The essential elements of a cause of action for breach of contract are "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff. [Citations omitted.] " (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) Plaintiff has proven each of the elements of his claim for breach of contract, and Plaintiff has therefore met his initial burden of demonstrating he is entitled to summary adjudication of that cause of action based on that proof without having to disprove any affirmative defenses asserts by Han in her answer. (*Aguilar, supra*, 25 Cal.4th at 849, 853; *Paramount Petroleum Corp., supra*, 227 Cal.App.4th at 241; Code Civ. Proc. § 437c(p)(1).) Summary adjudication of this cause of action also includes the right to recover attorneys' fees incurred by Plaintiff in this action. (UMF Nos. 7, 11.) The Court therefore **grants** Plaintiff's motion for summary adjudication as to Issue 1.

B. Issue 4: Prejudgment Interest

Plaintiff also moves for summary adjudication of his claim for recovery of "interest" on the unpaid balance due under the Agreement based on the terms of the Agreement in Issue 4. (UMF No. 20.) A claim for damages can be the subject of summary adjudication. (Code Civ. Proc. § 437c(f).) The Agreement does not provide for "interest" on the unpaid balance but rather for imposition of "a late

fee of .08333 percent of the outstanding balance per month to be charged to the client. THE ANNUAL PERCENTAGE RATE OF THE LATE CHARGE FOR BILLS NOT PAID IS TEN PERCENT (10%)." (Miller Decl. Exh. 1 [Agreement ¶ 8].)

Nevertheless, consistent with the Complaint, the Miller Declaration specifically requests prejudgment "interest" at 10% per annum on the outstanding contract balance as does Miller's declaration (Compl. ¶ 10.b.; Miller Decl. ¶ 8), and Plaintiff cites Civil Code § 3287 in support of the request for prejudgment interest. (MPA ISO Mot. pp. 9-10; Civ. Code § 3287(a) ["A person who is entitled to recover damages certain, or capable of being made certain by calculation, and the right to recover which is vested in the person upon a particular day, is entitled also to recover interest thereon from that day, except when the debtor is prevented by law, or by the act of the creditor from paying the debt."].) (*See also Howard v. American National Fire Ins. Co.* (2010) 187 Cal. App. 4th 498, 538 [unless specified by a contract, prejudgment interest rate on breach of contract made after January 1, 1986 is 10 percent pursuant to California Constitution, Article XV, section 1 and Civil Code § 3289(b)].) The Court therefore **grants** Plaintiff's motion for summary adjudication for prejudgment interest at the rate of 10 percent per annum from April 18, 2022 on the balance of \$132,282.32 due under the Agreement.

C. Issue 2: Second Cause of Action Common Count / Account Stated

While it is true that if there is a breach of written contract cause of action, the plaintiff "may plead inconsistent causes of action for breach of contract and common count" (*Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism* (2016) 6 Cal.App.5th 1207, 1223), generally, under California law, a debt based upon the breach of the terms of an express contract cannot be the basis of an account stated. (*Moore v. Bartholomae Corp.* (1945), 69 Cal. App. 2d 474, 477 ["The law is established in California that a debt which is predicated upon the breach of the terms of an express contract cannot be the basis of an account stated."].) (*See also Professional Collection Consultants v. Lauron* (2017) 8 Cal.App.5th 958, 968 [citing general rule].) Having proven the existence of the written contract, the debt outstanding under that contract, and damages in Issues 1 and 4, the Court denies the motion for summary adjudication of the Second Cause of Action on this ground.

D. Issue 3: The Affirmative Defenses pled in the Defendant's Answer

Both the summary judgment statute quoted above and the California Supreme Court's decision in *Aguilar, supra*, 25 Cal.4th 826 are clear that a plaintiff moving for summary judgment or summary adjudication need not negate defenses asserted by the defendant in the answer to meet the plaintiff's initial burden of demonstrating the plaintiff is entitled to summary judgment or summary adjudication. The plaintiff only needs to demonstrate there are no triable issues of material fact as to each of the essential elements of plaintiff's cause of action, which Miller has done in connection with Issue 1 and the first cause of action of the Complaint for breach of contract. Issue 3 is thus immaterial to the Court's granting summary adjudication of the first cause of action.

Procedural Note on Motion

Plaintiff's notice of motion and motion lists the four issues subject to the motion for summary adjudication and states that the issues are repeated verbatim in the SS pursuant to California Rule of Court, Rule 1350(b). They are not. The court has labeled the arguments in this opinion to clarify the issues discussed in each section.

6. 9:00 AM CASE NUMBER: C24-01666
CASE NAME: NIRAJ GANDHI VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING IN RE: MOTIN TO COMPEL
FILED BY:

TENTATIVE RULING:

Plaintiff Niraj Gandhi moves to Compel Further Responses to Special Interrogatories (Set One), and for Monetary, Issue and Evidence Sanctions against Defendant San Ramon Regional Medical Center. The motion is **denied**.

Factual Background

Plaintiff does not include a description of the factual allegations in the lawsuit to give context to the relevance of the discovery sought. The Court draws upon the factual background from the Opposition papers. This action arises out of an allegation that defendant lost catheterization images of Plaintiff and knowingly concealed that from him.

Discussion

The motion is procedurally deficient. Plaintiff has failed to comply with California Rules of Court, Rule 3.1345(c). Rule 3.1345(c) requires that Plaintiff's Separate Statement in support of his motion include "[t]he text of the request, interrogatory, question, or inspection demand," "[t]he text of each response, answer, or objection, and any further responses or answers" and "[i]f necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it." (Rule of Ct, 3.1345(c)(1)-(2). The court may deny the motion on the basis that the Separate Statement did not comply with Rule 3.1345(c).

Plaintiffs' Separate Statement fails to include the entirety of the interrogatories in question and the entirety of Defendant's responses to the interrogatories in question. In addition, the Separate Statement fails to include the definitions that Plaintiff outlined in the beginning of his interrogatories to define terms including, but not limited to "INCIDENT," "MANAGEMENT," KEY DECISION MAKER." Plaintiff specifically cherry picked portions of the interrogatories and Defendant's responses to provide to the Court in his Separate Statement. The court finds that Plaintiff's failure to comply with the Rules of Court is without justification. This is one reason the motion to compel is denied.

The court also finds no basis for concluding that Defendant has willfully or in bad faith obstructed discovery. Plaintiff's assertions that Defendant did not perform a reasonable investigation is sheer speculation and not supported by evidence. Plaintiff also writes as if the instant motion was for compelling further responses to Requests for Admission, which it is not. Plaintiff's accusations of "proven bad faith" are baseless and unsupported by any record. The Court finds that the middle finger comment was in the context of what Defendant might recover at the end of the case, not in a statement defining what would or would not be produced in discovery.

Order

The motion to compel further responses is denied.